LEASE AGREEMENT

KEY PROVISIONS SUMMARY

Property	114 Central Ave (also known as 102-104 Quimby St), Westfield, NJ 07090. (#Address)	
Lease Execution Date:	The date this Lease is executed by both parties which is: June 15, 2026. (#Signature_Date)	
Landlord:	MARION STREET 114 LLC (#Landlord)	
Tenant:	CHEZ ALICE WESTFIELD LLC (#Tenant)	
Premises:	One (1) Ground Floor Retail (hereinafter collectively referred to as "the store") in a commercial building (hereinafter referred to as "the building") (#Premises). The basement space located beneath the Premises shall be made available for Tenant's exclusive use subject to the attached Floor Plan (Exhibit A) and Section 1 below;	
Premises Sqft:	Approximately 2,423 Total Gross Sq Feet (#SquareFeet)	
Tenant Share or Pro Rata Share of the Property	Tenant's Share shall be equal to a percentage calculated based on the rentable square footage of the Premises, divided by the total square footage of the first floor of the building located on the Property, which first floor square footage is 4,894 rsf. For clarity, the first floor is allocated 60% of the operating costs for the Property. The Tenant's Share shall be 29.70% (#Share_Property), provided however, in no event shall the Tenant's Share be increased.	
Tenant Share or Pro Rata Share of the Floor	Tenant's Share shall be equal to a percentage calculated based on the rentable square footage of the Premises, divided by the total square footage of the first floor of the building located on the Property, which first floor square footage is 4,894 rsf. For clarity, the first floor is allocated 100% of the operating costs for the Floor, and therefore, the Tenant's Share of the Floor shall be limited to the operating costs allocated to the first floor only. The Tenant's Share shall be 49.51% (#Share_Floor), provided however, in no event shall the Tenant's Share of the Floor be increased.	
Tenant Share of Premises	Tenant's Share of the Premises being 100.00% (#Share_Premises)	
Permitted Use	The Premises are to be used and occupied only and for no other purpose than the operation of a *ARTISINAL BAKERY,* with a commercial kitchen offering, limited seating, take-out and delivery of both prepared food and bakery items. (#PermittedUse)	
Notice Addresses	Landlord: (#Landlord) MARION STREET 114 LLC Attn: Addison Sollog PO Box 26 Short Hills, New Jersey 07078 Emails: asollog@gmail.com; richard.b.angel@gmail.com; jason.forster@proventusproperties.com	Tenant: (#Tenant) CHEZ ALICE WESTFIELD LLC Attn: Roy Oberhauser & Sophia Lee 114 Central Avenue Westfield, NJ 07090 Emails: roberhauser@genesis-ip.com solee@mdlab.com nokul@genesisglobalgrp.com
Lease Type	Triple Net Lease (NNN), see details below (#LeaseType)	
Lease Commencement Date	The date on which the Premises are delivered to the Tenant with the Landlord Work Substantially Completed ("Lease Delivery Condition"), which date is anticipated to be on or around August 1st, 2026; see details below (#Lease_Commencement_Dt)	
Lease Delivery Condition	Premises are delivered to Tenant vacant and broom-clean, and free of any liens or Encumbrances with the Landlord Work Substantially Completed; see details below (#Delivery_Condition). For purposes of this Lease, "Substantially Completed" or "Substantial Completion" means that the Landlord Work has been completed in accordance with this Lease and in a good and workmanlike manner, except for minor	

<table>
<tr><td></td><td>punch-list items that do not materially interfere with Tenant's access to, occupancy of, or ability to commence Tenant's Work in, the Premises and open for business, and that do not involve any life-safety, structural, roof, waterproofing, or Building systems issues and do not violate applicable laws. Substantial Completion shall be evidenced by Landlord's written notice to Tenant that the Landlord Work is substantially complete, together with a punch-list of remaining items, and Landlord shall diligently complete all punch-list items within a commercially reasonable time thereafter.</td></tr>
<tr><td>Rent Commencement Date</td><td>The Rent Commencement Date shall be the earlier of: (i) Tenant's opening for business or (ii) one hundred fifty (150) days after Lease Commencement Date. For the purposes of this Lease, the "Rent Commencement Date" shall be approximately on or about January 1, 2027; see details below (#Rent_Commencement_Dt)</td></tr>
<tr><td>Permit Period</td><td>Tenant shall have ninety (90) days from Lease Execution Date (the "Variance Contingency Period") to obtain a seating variance permitting at least thirty (30) seating places in the Premises (the "Variance"). Should the Variance be denied within the Variance Contingency Period, or approved with conditions that materially impair Tenant's permitted use of the Premises, Tenant may elect to terminate the lease by written notice delivered to Landlord within the Variance Contingency Period and receive a full refund of all security deposits paid less a $5,000.00 early termination fee. Landlord shall pay such refund within ten (10) business days after Landlord's receipt of Tenant's termination notice, and no other sums shall be retained by Landlord as a condition of such termination. Notwithstanding the foregoing Tenant must use best efforts to obtain the requested Variance during the Variance Contingency Period; see details below (#Permit_Period)</td></tr>
<tr><td>Lease Expiration Date</td><td>This Lease shall expire at Midnight at the end of the last day of the last full calendar month after a period of time equal to the ("Lease Term") and following the Rent Commencement Date. The Expiration Date is anticipated to be on or about December 31, 2036; see details below (#Expiration_Dt)</td></tr>
<tr><td>Lease Term</td><td>One Hundred Twenty-Five (125) Months from Lease Commencement Date; see details below (#Lease_Term)</td></tr>
<tr><td>Base Rent</td><td>Base Rent Table:
<table>
<tr><th>Term</th><th>Monthly Amount</th><th>Annual Amount</th></tr>
<tr><td>Year 1</td><td>$ 10,903.50</td><td>$ 130,842.00</td></tr>
<tr><td>Year 2</td><td>$ 11,121.57</td><td>$ 133,458.84</td></tr>
<tr><td>Year 3</td><td>$ 11,344.00</td><td>$ 136,128.02</td></tr>
<tr><td>Year 4</td><td>$ 11,570.88</td><td>$ 138,850.58</td></tr>
<tr><td>Year 5</td><td>$ 11,802.30</td><td>$ 141,627.59</td></tr>
<tr><td>Year 6</td><td>$ 12,038.35</td><td>$ 144,460.14</td></tr>
<tr><td>Year 7</td><td>$ 12,279.11</td><td>$ 147,349.34</td></tr>
<tr><td>Year 8</td><td>$ 12,524.69</td><td>$ 150,296.33</td></tr>
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<tr><td>Year 10</td><td>$ 13,030.69</td><td>$ 156,368.30</td></tr>
<tr><td>Mths 121-125</td><td>$ 13,291.31</td><td>$ 159,495.67</td></tr>
</table>
Table End
(#Base_Rent)</td></tr>
<tr><td>Additional Rent</td><td>Tenant shall pay an estimated monthly installment of Additional Rent during the first Lease Year in the amount of $3,025.00, subject to section 5.1 below (#Additional_Rent)</td></tr>
<tr><td>Option Period(s)</td><td>Tenant may extend the Lease for two (2) additional terms of sixty (60) months each (each, an "Option Term"), see details below

First Option Term: Fair Market Value

Second Option Term: Fair Market Value</td></tr>
</table>

	(#Options to Renew)
Option to Cancel	During the eighty-third (**83rd) month of the lease following the Lease Commencement Date**, Tenant has the one-time option to provide the Landlord a one-hundred eighty (180) day written cancellation notice, whereas the tenant will be cancelling the lease and be responsible for the rent and additional rent for the remainder of such days through the completion of **eighty-ninth (89th) month** of the lease and may vacate the space. As long as the space is delivered in broom clean condition, and in accordance with this lease, there will be no penalty. If there is no notice received by the landlord as described above, it is assumed the lease will continue through the remainder of the lease term as outlined in this document; see details below (#Option_to_Cancel)
Utility and Service Contracts	Utility and Service Contracts are to be directly established and paid for by tenant include but not limited to: hot and cold water (American Water), electricity (PSEG), gas (PSEG) or other providers where applicable. All other service accounts and contracts to be established by landlord but to be reimbursed by tenant through the Operating Costs which shall be applied to all tenants proportionally based on Tenant's Share of the Property, Floor or Premises where applicable. Landlord reserves the right to require tenant to directly contract with a preferred vendor for a specific building service (e.g Waste Removal) subject to the provisions of the section 6 below. (#Utilities)
Security Deposit	Tenant shall deliver to Landlord a Security Deposit in the amount of $21,807.00, which equals the Base Rent payable for the first two (2) months of the initial Lease Term ("The Month Multiplier"). (#SecurityDeposit)
Broker(s)	Patrick Dintrone of Newmark and Jason Forster of Proventus Properties; see details below (#Brokers_Commission)
Landlord's Rent Payment ACH Payment details	ACH Payments Pay to: Marion Street 114 LLC Routing Number:021000021 Account Number:2906230973
Landlord Work	Prior to the Lease Commencement Date, Landlord shall complete the work set forth in Exhibit B: Landlord Work Itemized. Guidelines for Landlord Work. (#Landlord_Work_Guidelines)
Tenant Work	Guidelines for Tenant Work. (#Tenant_Work_Guidelines)
Landlord Contribution to Tenant Fit-Up Expense	Landlord agrees to contribute a Tenant Improvement Allowance of $48,460 toward Tenant fit-out and Tenant Exclusive Systems (the "Tenant Improvement Allowance"). The Tenant Improvement Allowance shall be paid in three (3) equal tranches at three (3), six (6), and nine (9) months after the Lease Commencement Date, provided Landlord receives lien waivers and invoices evidencing Eligible Costs (as defined below) and Tenant is open for business; see detail below (#Landlord_TIContribution)
Exhibits	Exhibit A – Floor Plan (#Floorplan) Exhibit B: Landlord Work Itemized (#Landlord_Work_Itemized) Exhibit C: Tenant Work Itemized (#Tenant_Work_Itemized)

This **LEASE AGREEMENT** (hereafter referred to as the "Lease") is made on the date this Lease is executed by both parties which is: June 15, 2026**:**

BETWEEN

MARION STREET 114 LLC,

hereinafter referred to as the "Landlord",

AND

CHEZ ALICE WESTFIELD LLC,

hereinafter referred to as the "Tenant".

Section 1. Premises. The Landlord does hereby lease to the Tenant, and the Tenant does hereby lease from the Landlord, the following described premises:

A. One (1) Ground Floor Retail (hereinafter collectively referred to as "the Store") in a commercial building (hereinafter referred to as "the Building") located at 114 Central Ave (also known as 102-104 Quimby St), Westfield, NJ 07090 consisting of approximately 2,423 Total Gross Sq Feet and hereinafter collectively referred to as the "Premises" with the Tenant's Share of the Property being **29.70%,** Tenant's Share of Floor being **49.51%** and the Tenant's Share of the Premises being **100.00%** (hereinafter collectively referred to as the "Tenant's Share").

B. The basement space located beneath the Premises and labeled "Suite 102 Basement Area" on the Exhibit A Floor Plan shall be made available for Tenant's exclusive use throughout the Term, at no Rent, Additional Rent, or other charge. In addition, the basement space labeled "Suite 104 Basement Area" on the Exhibit A Floor Plan shall be made available for Tenant's exclusive use throughout the Term, at no Rent, Additional Rent, or other charge; provided, however, that the Suite 104 Basement Area may be used only for dry storage and shall not be used for food preparation, cooking, food handling, or any other operational use. Tenant's use of the basement storage areas shall be subject to all applicable laws, codes, and insurance requirements. No customers, patrons, or other members of the public shall be permitted in any basement area. Tenant shall not store or leave any property, garbage, equipment, inventory, materials, or other items in any common basement areas, nor shall Tenant block, obstruct, or interfere with access to any building systems, utility areas, maintenance areas, mechanical rooms, or other common areas. Landlord shall not materially interfere with Tenant's permitted use of the basement storage areas, except as reasonably necessary for inspection, maintenance, repairs, emergencies, compliance with law, or access to building systems, and Tenant's permitted use of such areas shall be included within Tenant's right of quiet enjoyment under this Lease.

C. If the property is every subdivided, expanded, contracted or another building is built on the same property then the Tenant's Share of the Property or Floor shall be adjusted but never increase.

Section 2. Lease Term. The term of this Lease shall be for a period of One Hundred Twenty-Five (125) Months from Lease Commencement Date (hereinafter the "Lease Term") under the following terms and conditions:

A. **Lease Execution Date.** The date this Lease is executed by both parties which is: June 15, 2026.

B. **Lease Commencement Date**. The date on which Landlord delivers possession of the Premises to the Tenant and Tenant accepts the same in vacant and broom-clean, and free of any liens or Encumbrances ("Lease Delivery Condition"), which date is anticipated to **occur on or about August 1, 2026.** If Landlord fails to deliver possession of the Premises to Tenant on or before November 1, 2026, then Tenant shall have the right to terminate this Lease upon ten (10) days' prior written notice to Landlord and return of its Security Deposit.

   Except for Landlord's work, specifically set forth in Exhibit B ("Landlord Work Itemized"), Tenant acknowledges and agrees to accept possession of the Premises in its then existing "as-is", "where-is" condition, subject to (i) Landlord's obligation to complete the Landlord Work in accordance with this Lease, and (ii) the representations and warranties of Landlord set forth herein. Except as expressly provided herein, Landlord makes no representation or warranty as to the condition of the Premises or its suitability for Tenant's intended use. Notwithstanding the foregoing, Landlord represents and warrants that, as of the

Lease Commencement Date, (a) the HVAC, plumbing, and electrical systems serving the Premises shall be in good working order and condition. In the event any of the foregoing representations are untrue, then Landlord shall, at its sole cost and expense, promptly repair or replace the same (except to the extent caused by Tenant's modifications, misuse or negligence), and the cost thereof shall not be passed through to Tenant as Additional Rent or Operating Costs.

C. **Permit Period.** Tenant shall have ninety (90) days from the Lease Execution Date (the "Variance Contingency Period") to obtain a variance permitting at least thirty (30) seating places in the Premises (the "Variance"). If Tenant is unable to obtain the Variance within the Variance Contingency Period, or if Tenant determines that such Variance is unlikely to be granted within the Variance Contingency Period Tenant may elect to terminate this Lease and receive a refund of all security deposits paid, less a $5,000.00 early termination fee. Notwithstanding the foregoing, Tenant must use best efforts to obtain the requested Variance during the Variance Contingency Period.

D. **Rent Commencement Date.** The Rent Commencement Date shall be the earlier of: (i) Tenant's opening for business or (ii) one hundred fifty (150) days after Lease Commencement Date. For the purposes of this Lease, the "Rent Commencement Date" shall be approximately on or about **January 1, 2027.**

E. **Lease Expiration Date.** This Lease shall expire at Midnight at the end of the last day of the last full calendar month after a period of time equal to the ("Lease Term") and following the Lease Commencement Date. The Expiration Date is anticipated to **be on or about December 31, 2036**, unless sooner terminated pursuant hereto or by law or unless extended in accordance with executed "options to renew" as outlined in this Lease

F. **Option to Cancel.** During the eighty-third (83rd) month of the Lease following the Lease Commencement Date, Tenant has the one-time option to provide the Landlord a one-hundred eighty (180) day written cancellation notice, whereas the Tenant will be cancelling the Lease and be responsible for the Rent and Additional Rent for the remainder of such days through the completion of eighty-ninth (89th) month of the Lease and may vacate the Premises. As long as the Premises are delivered in broom clean condition, and in accordance with this Lease, there will be no penalty, and the Security Deposit shall be returned to the Tenant in accordance with the terms of this Lease. If there is no notice received by the Landlord as described above, it is assumed the Lease will continue through the remainder of the Lease Term as outlined.

Section 4. Permitted Use. The Premises are to be used and occupied only and for no other purpose than the operation of a ***ARTISANAL BAKERY***, with a commercial kitchen offering, including, without limitation, the preparation, baking, display, and sale of baked goods, pastries, coffee, tea, and other food and beverage items (excluding smoothies, frozen skyr, acai and pitaya bowls), together with ancillary retail sales, catering, delivery, take-out, and limited seating, and for any other lawful use consistent with the foregoing. In addition:

A. Tenant shall not use or permit the Premises to be used for any other purpose without the prior written consent of Landlord, which shall not be unreasonably withheld, conditioned or delayed Tenant shall be responsible to obtain all licenses and permits required by Local, State and Federal governments prior to the opening of business.

B. The Tenant will not and shall not allow others to occupy or use the Premises or any part thereof for any purposes other than as specified in this **Section 4**, nor for any purpose deemed unlawful, disreputable, or extra hazardous, on account of fire or other casualty.

Section 4.1 Suitability. Tenant acknowledges that neither Landlord nor any agent of Landlord has made any representation or warranty with respect to the Premises or the suitability of the Premises for the operation of the Tenant's business, nor has Landlord agreed to undertake any modification, alteration, or improvement to the Premises except as provided in this Lease. The taking of possession of the Premises by Tenant shall conclusively establish that the Premises were at such time in satisfactory condition. Tenant accepts the premises "AS IS".

Section 4.2. Exclusive Use. Landlord agrees that, during the Term, it shall not lease, license, or otherwise permit any space within the Property to be used for a café or bakery serving baked goods(including, without limitation, bread, pastries, cakes, cookies, or similar items) (the "Restricted Items"), whether for on-premises consumption or take-out excluding existing tenants offering such Restricted Items at the time of signing this Lease (the "Excluded Tenants"). In the event of a breach of this Section that is not cured by Landlord within thirty (30) days' written notice from Tenant, Tenant shall be entitled to an abatement of twenty-five percent (25%) of Base Rent from the date of such breach until the earlier of (i) the cure of such breach, or (ii) Tenant's election to terminate this Lease upon written notice to Landlord if such breach continues for more than thirty (30) days after written notice thereof. Notwithstanding the foregoing, the Restricted Items exclusions list does not apply to any future potential tenant offering the Restricted Items as supplemental menu item where the sales of those items make up less than ten percent (10%) of their revenue on an annual basis.

Section 5. Base and Additional Rent. Tenant acknowledges and agrees that this is a Triple Net Lease (NNN), as modified herein, it being understood that Landlord shall receive all Rent ("Base Rent" and "Additional Rent") as provided in the Lease free and clear of any and all impositions, encumbrances, charges, obligations or expenses of any nature whatsoever in connection with the ownership and operation of the Premises. The "Base Rent" is intended to be absolutely net to Landlord after payment by Tenant of all "Additional Rent" required to be paid by Tenant pursuant to this Lease. The monthly triple net Base Rent for the Term shall be payable in advance in equal monthly installments on the first (1st) day of each calendar month, commencing on the Rent Commencement Date, in accordance with the following schedule which the Tenant hereby covenants and agrees to pay Landlord:

Base Rent Table:

Term	Monthly Amount	Annual Amount
Year 1	$ 10,903.50	$ 130,842.00
Year 2	$ 11,121.57	$ 133,458.84
Year 3	$ 11,344.00	$ 136,128.02
Year 4	$ 11,570.88	$ 138,850.58
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Year 10	$ 13,030.69	$ 156,368.30
Mths 121-125	$ 13,291.31	$ 159,495.67

Table **End**

A. Upon mutual agreement of the Lease Commencement Date, Landlord and Tenant shall execute a Lease Commencement Agreement acknowledging the Lease Commencement Date, Rent Commencement Date, and expiration date of the Lease.

B. All Free Rent, The Tenant Improvement Allowance, Brokerage Commissions paid by Landlord, and Legal Fees incurred by Landlord (collectively, "Leasing Costs") are granted in consideration of Tenant's full performance throughout the entire Term. If any Event of Default by Tenant is not cured within the applicable cure period and as a result thereof, this Lease is terminated prior to Expiration, Tenant shall immediately repay the balance of the unamortized Leasing Costs based on straight-line amortization over the initial Lease Term through the date of such termination. For example, if the Lease is terminated as a result of an Event of Default of the Tenant effective at the end of the third Lease Year, the Tenant shall pay the amortized Leasing Costs for the Fourth Lease Year and every Lease Year thereafter in the Initial Term. All such sums are Additional Rent, immediately due and payable within thirty (30) days from demand, and this obligation survives termination. Please note that for avoidance of doubt the tenant has an option to cancel that if exercised in accordance with the terms and provisions of this lease, Tenant shall have no obligation to pay the Leasing Costs. Notwithstanding the foregoing, the Landlord shall have a duty to mitigate its damages.

Section 5.1 Additional Rent. In addition to the Base Rent, commencing on Rent Commencement Date, Tenant shall pay Additional Rent representing Tenant's Share of the Property, Floor and or Premises (as set forth in Section 1 and the Key Provisions Summary) of the Landlord's Operating and Maintenance Costs for the Premises, as defined below. All such sums shall constitute Rent under this Lease, and the Landlord shall have the same rights and remedies for non-payment as for failure to pay Base Rent.

Section 5.2 Operating and Maintenance Cost. This being a triple net lease (NNN), Tenant shall be responsible for Tenant's pro-rata share of the following costs (collectively, "Operating Costs"): real estate taxes; repairs and maintenance; maintenance and service contracts; property management fees plumbing; non-structural repairs and maintenance of the roof (expressly excluding any roof replacement); HVAC repair and maintenance for Common Areas; painting; wall and window washing; tools and equipment; insurance premiums for fire, flood, extended coverage, liability insurance carried by Landlord; trash and recycling removal; pest extermination; alarm and security system; sprinkler service (if applicable); water and sewer service; common area electricity, janitorial services excluding services for any tenant-occupied premises or office spaces within the Building; snow and ice removal. Notwithstanding the foregoing, Landlord reserves the right to add additional services that it deems necessary to operate the building and require reimbursement for those services through the Operating Costs reconciliation process. Notwithstanding anything herein to the contrary, controllable expenses (excludes: RE Taxes, Insurance, snow and ice removal, building utilities, emergency expenditures) are not to exceed an increase of 5% as measured on a year over year basis (the "Operating Cost Cap"). Operating Costs shall expressly exclude: any Capital Expenditures (hereinafter defined), including without limitation roof replacement; repairs or replacement of structural components of the Building, including foundation, exterior wall and load bearing elements; all costs related to elevators, including maintenance, repair, replacement, or modernization; utility lines and systems outside the Premises or prior to the point of entry into the Premises; any costs paid or reimbursed by Landlord's insurance or otherwise recovered by Landlord; costs arising from Landlord's negligence or willful misconduct; costs arising from Landlord's failure to comply with applicable laws; depreciation of any building or equipment, interest, mortgage debt service, ground rent, income or excess profits taxes, franchise taxes, or salaries of Landlord's executive personnel; all costs related to services or maintenance of other portions of the Property to the exclusion of the first floor of the Building; and any costs not customarily included within operating expenses of comparable properties. Notwithstanding anything to the contrary, Operating Costs may include Capital Expenditures only to the extent such Capital Expenditures are (i) for the replacement of existing components or systems of the Building that are worn out or no longer fit for their intended purpose (as opposed to expansion or new construction), (ii) required by applicable laws that are enacted or first interpreted after the Lease Commencement Date, or (iii) reasonably intended to reduce Operating Costs or improve the efficiency, safety, or operation of the Building. Any Capital Expenditure that is included in Operating Costs shall be included only on an amortized basis (without interest), using straight-line amortization over the useful life of the improvement as used for federal income tax purposes (or if no such tax life is applicable, over the commercially reasonable useful life), and only the annual amortization amount for the applicable period (prorated for any partial period) shall be included in Operating Costs, subject to the Operating Cost Cap. Tenant shall not be responsible for any unamortized balance after expiration or earlier termination of this Lease. With respect to HVAC and other heating and cooling systems, to the extent any system serves areas outside the Premises or is a shared or common system, Tenant shall only be responsible for its pro rata share of routine maintenance and repair and shall not be responsible for replacement or capital improvements to such system. Tenant is however responsible for the repair and replacement of the Tenant HVAC (hereinafter defined) except that in no event shall the Tenant be responsible to replace the Tenant HVAC or any major components thereof (including but not limited to any compressor, condenser, coils, controls, motor or heat exchanger) during the last 24 months of the Term, which shall be the responsibility of Landlord. If however, the Tenant chooses to extend his lease then those expenses initially excluded during the last 24 months of the term will be reimbursed by Tenant during the next reconciliation. Should the property ever be split into separate properties or a new structure is built on same, Landlord shall equitably adjust Tenant's pro-rata share to reflect the revised rentable areas, and Tenant shall not bear a disproportionate share of Operating Costs. "Capital Expenditures" means capital expenditures, capital improvements, and other items that are properly chargeable to capital account in accordance with generally accepted accounting principles consistently applied, including, without limitation, the costs of capital replacements, upgrades, or improvements to the Building and/or the Property. Notwithstanding the above, all maintenance and repair expenses of the building shared boiler system will be passed to the Tenant at his pro rata share of the Property.

Payment of Tenant's Additional Rent. Tenant shall pay an estimated monthly installment of Additional Rent during the first Lease Year in the amount of $3,025.00. For each subsequent Lease Year, the monthly estimate shall equal one-twelfth (1/12) of the prior year's total Additional Rent, subject to adjustment as determined by Landlord based on actual Building expenses. Landlord shall reconcile estimated and actual Operating Costs on a quarterly, semi-annual, or annual basis (at Landlord's discretion) and shall provide a statement to Tenant within sixty (60) days after the close of each reconciliation period. On an annual basis, no later than sixty (60) days after the end of the prior calendar year, Landlord shall provide Tenant with a reasonably detailed annual reconciliation statement for the prior calendar year itemizing the Operating Costs (the "Annual Reconciliation Statement"). Not to exceed one time (1) per year, Tenant may, upon reasonable prior notice to Landlord, review and audit Landlord's books and records relating solely to Operating Costs for the period reflected in any Annual Reconciliation Statement received by Tenant, and Landlord shall make available for such review and audit invoices, contracts, and reasonable backup supporting each charge included in Operating Costs. Tenant may dispute any item(s) in any reconciliation statement by written notice to Landlord within thirty (30) days after Tenant's receipt of the reconciliation statement or with respect to an Annual Reconciliation Statement, within sixty (60) days, specifying the item(s) disputed and the basis for the dispute. If the actual amount incurred for Operating Costs exceeds Tenant's estimated payments, Tenant shall pay the deficiency within thirty (30) days of receipt of the reconciliation invoice; provided, however, Tenant shall timely pay all undisputed amounts when due, and any amounts disputed in good faith shall not be subject to late fees, default, penalties, or interest pending resolution. If it is determined that Tenant has paid amounts that were not properly includable in Operating Costs, or otherwise was overcharged for Operating Costs for any period, Landlord shall, within thirty (30) days after Landlord's receipt of Tenant's written notice of such determination (together with reasonable supporting detail), credit such amount against the next amounts of Additional Rent due or if the Lease has expired or terminated, refund such amount to Tenant. Annual charges may be amortized into twelve (12) monthly installments as determined by Landlord. If payment is not received within 60 days, penalties will follow procedures outlined in Section 6 below; provided that no such penalties shall apply to amounts disputed in good faith pursuant to this paragraph pending resolution.

A. Landlord reserves the right to have Tenant pay its Base Rent and Additional Rent via on-line payment by ACH transfer to Tenant's portal, or any other reasonable means determined by the Landlord; provided, however, that Landlord shall provide Tenant with a functional on-line portal/ACH payment method and reasonable written instructions for its use. In the event Tenant does not comply, Tenant shall be subject to an administrative fee not to exceed Fifty Dollars ($50.00) for each occurrence of payment by any other method; provided, however, that (i) no such administrative fee shall apply if Landlord's portal/ACH method is unavailable or not functioning, (ii) no such administrative fee shall apply if Landlord changes payment instructions without reasonable prior written notice to Tenant, and (iii) no such administrative fee shall apply to any amounts that are being disputed in good faith.

B. As of the Lease Commencement Date, or promptly thereafter, Tenant shall transfer all utility accounts exclusively serving the Premises and capable of being separately metered or billed into Tenant's name and maintain them in good standing for the Lease Term. For the Tenant HVAC, Tenant shall maintain a customary HVAC maintenance service contract at Tenant's sole cost. Except as expressly provided in this Lease, this Lease is non-terminable by Tenant provided however that nothing herein shall limit Tenant's rights to terminate this Lease in the event of (i) Landlord's uncured default, (ii) condemnation or (iii) any other termination rights expressly provided herein. If Landlord fails to perform any of its obligations under this Lease within thirty (30) days after written notice from Tenant, Tenant may, but shall not be obligated to, perform such obligations on Landlord' behalf. Landlord shall reimburse Tenant for all reasonable, actually incurred, and documented costs within thirty (30) days after receipt of Tenant's invoice and supporting documentation. Tenant shall use commercially reasonable efforts to minimize costs, and any work performed shall be limited to that reasonably necessary to cure Landlord's default

Section 5.3 Options to Renew. Tenant may extend the Lease for two (2) additional terms of sixty (60) months each (each, an "Option Term"), see details below

First Option Term: Fair Market Value

Second Option Term: Fair Market Value

Each Option Term is subject to: (a) written notice at least 270 days before expiration of the applicable term (failure to give timely notice waives the option); (b) same terms as this Lease except Base Rent; (c) no options beyond the outlined Option Term; (d) the Option Terms shall be exercisable by Tenant and any permitted assignee of this Lease; (e) no defaults beyond applicable cure periods existing at the time of exercise of any Option Term; (f) no more than two late rent payments in any twelve-month period during the Term; and (g) continued payment of all Additional Rent.

Section 6. Maintenance/Utilities and Service Contracts. Landlord shall deliver and supply utilities to the point of entry to the Premises. Tenant shall be responsible for all utilities services within the Premises (or solely serving the Premises) and paying any utility service provider for same, including, without limitation, hot and cold water, sewer, electricity, gas, and waste removal. To the extent a utility service is separately metered, or Landlord reasonably determines that a separate meter can be installed, Tenant shall establish and maintain the account directly with the provider and pay all charges directly. If a utility or service is not separately metered but is sub metered, or Landlord reasonably determines that a submeter can be installed, Landlord shall, at Landlord's expense, pay for the installation and maintenance of such submeter and be reimbursed for actual measured usage through Operating Costs or as Additional Rent. If neither a separate meter nor submeter exists or can reasonably be installed, Tenant shall reimburse Landlord for its pro-rata share, or other commercially reasonable allocation determined by Landlord, through CAM charges or as Additional Rent. Landlord may establish and maintain other utility or service contracts for the Building, and Tenant shall reimburse Landlord for Tenant's share of such costs through Operating Costs or as Additional Rent. All such costs shall be commercially reasonable, actually incurred, and without profit or any fees to Landlord. Tenant shall promptly open utility accounts in its name where required by Landlord. Any utility or service charges paid by Landlord but attributable to Tenant shall be Additional Rent due within thirty (30) days after demand with reasonable supporting documentation.

A. **Snow and Ice Removal, Extermination, Garbage and Recyclables**. Landlord shall be responsible for contracting for snow and ice removal for sidewalks abutting the Property, walkways, parking areas, and other Common Areas, and for pest control of the Common Areas, the cost of which will be included in Operating Costs. Tenant shall be responsible, at Tenant's sole cost, for pest control and extermination within the Premises (including basement spaces) and for any pest condition caused by Tenant's use, operations, employees, contractors, invitees, garbage, food handling, or waste. Tenant shall maintain, and upon Landlord's request provide evidence of, a pest control contract for the Premises with a licensed pest control provider. Tenant will be required to contract directly with the garbage/recycling/special waste handling provider serving the Building or another provider reasonably approved by Landlord with Landlords approval of the location of all receptacles/dumpsters, not to be unreasonably withheld. Tenant shall be responsible for all garbage, recycling, and special waste handling costs attributable to Tenant's business, operations, or Premises. Tenant shall defend, indemnify, and hold Landlord harmless from fines, penalties, claims, or costs arising from Tenant's failure to comply with its obligations under this Section.

B. Landlord shall, operate, maintain, repair, and replace, as necessary to keep the same in good order, condition, and repair, the Building and Property components customarily maintained by landlords of comparable properties, including without limitation: (i) all Common Areas (including sidewalks and other pedestrian areas, parking areas (if any), drive aisles, curbs, landscaped areas, and other areas provided for common use) including prompt removal of all snow and ice, (ii) the roof (including roof membrane and structural deck) and all roof drainage systems (including drains, leaders, gutters, and downspouts), (iii) all structural components of the Building, including foundations, slabs, load-bearing walls, columns, beams, joists, and other structural elements, (iv) the exterior of the Building, including exterior walls, façade, and waterproofing/weatherproofing systems, (v) all utility and service lines and connections serving the Premises up to the point of entry to the Premises (including water, sewer, gas, electric, and other utilities), and (vi) all base building/common building systems and equipment not located within and exclusively serving the Premises (including any shared or common HVAC, plumbing, electrical, fire/life-safety, and security/alarm systems, if any), except to the extent Tenant is expressly responsible under this Lease. Landlord shall perform the foregoing in a manner consistent with the standard of care of a prudent owner/landlord of comparable properties and in compliance with applicable laws. Landlord shall promptly make all repairs required to correct unsafe conditions and, in any event, shall commence repairs within a commercially reasonable time after receipt of written notice from Tenant (or immediately upon notice in the event of an emergency) and thereafter diligently prosecute the same to completion, using commercially reasonable efforts to minimize interference with Tenant's business. For clarity, Landlord's obligations under this clause include repairs and replacements required due to ordinary wear and tear, failure, casualty (subject to the casualty provisions of this Lease), and latent defects or conditions not caused by Tenant, and Tenant shall not be responsible for any capital repairs or replacements to any of the foregoing items unless expressly provided in this Lease. Any maintenance items properly includable in Operating Costs under this Lease (e.g., customary non-capital common area maintenance) may be included in Operating Costs, subject in all events to the exclusions and limitations set forth in this Lease. For the avoidance of doubt the Tenant is responsible for maintenance/repair/replacement of the following to the extent exclusively serving the Premises: a) the HVAC system (excluding the boiler) serving the Premises (the "Tenant HVAC") and b) any other mechanical, electrical, plumbing and sprinkler systems installed by the Tenant (a and b are referred to as the "Tenant Exclusive Systems"), provided however, Landlord shall be responsible for any replacements of the Tenant HVAC and any major components thereof (including but not limited to any compressor, condenser, coils, controls, motor or heat exchanger) during the last 24 months of the Term. If however, the Tenant chooses to extend his lease then those expenses initially excluded during the last 24 months of the term will be reimbursed by Tenant during the next reconciliation.

C. "Common Areas" means all areas, improvements, facilities, equipment, and appurtenances of the Property that are not part of the Premises and that are provided by Landlord from time to time for the common or joint use, benefit, service, or access of Tenant and other tenants, occupants, or invitees of the Property, including, without limitation (to the extent located on or serving the Property), any sidewalks, walkways, plazas, curb cuts, driveways, drive aisles, loading/service areas (if any), parking areas (if any), landscaped areas, lighting, trash/recycling areas (if any), utility/mechanical or service rooms intended for common use, common corridors or passageways (if any), stairways (if any), and other similar areas and improvements. Common Areas shall include such additional areas as Landlord may reasonably designate as common areas from time to time; provided that no such designation shall materially and adversely interfere with Tenant's access to or use of the Premises for the Permitted Use.

D. ADA/Accessibility. Landlord shall be responsible to promptly address, correct, and remediate any violation of the Americans with Disabilities Act of 1990, as amended ("ADA"), and any applicable state or local accessibility laws, but only to the extent such violation exists in the Common Areas or otherwise outside the Premises (and not within another tenant's premises). Landlord's obligations under this paragraph shall arise only upon the occurrence of a written notice of violation, complaint, claim, demand, citation, or other written notice from Tenant or any governmental authority (or upon Landlord's actual knowledge of such violation), and shall not be construed as a representation, warranty, or covenant by Landlord that the Property or Common Areas are in compliance with the ADA or such accessibility laws as of the Lease Execution Date or Lease Commencement Date.

Section 7. Late Payments and Dishonored Checks. In the event any rent payment due hereunder is not received by the Landlord by the 5th day of the month, then and in that event, Tenant shall pay to the Landlord as additional rent a late fee in the amount of five percent (5%) of the overdue installment, excluding any amounts that are being disputed in good faith (including, without limitation, any good faith dispute of Base Rent, Additional Rent, Operating Costs, or any other component of Rent due hereunder). It is expressly understood that acceptance by the Landlord of any rent payment without late fees included shall not be construed to be a waiver by the Landlord of the obligation of the Tenant to pay said late fees pursuant to this section. In the event any rent payment made by the Tenant is dishonored for reasons such as insufficient funds or otherwise, then and in that event, Tenant shall pay to the Landlord as additional rent a dishonored payment fee in the amount of One Hundred and Fifty Dollars ($150.00); provided, however, that no such dishonored payment fee shall apply to any amounts that are being disputed in good faith.

Section 8. Security Deposit. Tenant will be subject to posting a security deposit with the landlord as follows:

A. Initial Deposit. Upon the execution of this Lease, Tenant shall deliver to Landlord a Security Deposit in the amount of $21,807.00, which equals the Base Rent payable for the first two (2) months of the initial Lease Term (the "Security Deposit")

B. Return of Balance. Within forty-five (45) days after the later of (i) the expiration or earlier termination of the Lease Term and (ii) Tenant's surrender of the Premises to Landlord in accordance with this Lease, Landlord shall return the Security Deposit, less only those amounts reasonably necessary to cure Tenant's uncured monetary defaults beyond any applicable notice and cure periods and to pay the reasonable, documented out-of-pocket cost of repairing physical damage to the Premises caused by Tenant (ordinary wear and tear and damage by casualty excepted). Landlord shall not apply any portion of the Security Deposit to Rent unless and until the same is past due beyond any applicable notice and cure periods, and in no event may Landlord apply the Security Deposit to any amounts that are being disputed by Tenant in good faith.

If Landlord withholds or applies any portion of the Security Deposit, Landlord shall (a) provide Tenant with an itemized written statement describing in reasonable detail the basis for such withholding or application, together with copies of paid invoices or other reasonable third-party documentation (or, if not yet available, good faith estimates and thereafter the paid invoices when available), and (b) return the undisputed portion of the Security Deposit within such thirty (30) day period. Landlord may retain only such amounts as are reasonably necessary to address the items identified in such statement and shall promptly return any remaining balance within ten (10) days after final resolution of such items. Any Security Deposit required to be returned to Tenant shall not be conditioned on Tenant's execution of a release or other agreement not expressly required by this Lease.

Section 9. Landlord's Work. Landlord will perform itemized work to the premises subject to the following conditions: (#Landlord_Work_Itemized)

A. Landlord shall, at its sole cost and expense, perform the itemized work described Exhibit B: Landlord Work Itemized and in the time frames set forth therein subject to any delays that are beyond the Landlord's control such as but not limited to failure of the municipality, county or state where the Premises is located to issue any required building and/or zoning or other certificate necessary for Landlord's Work or delays caused by acts of God.

B. Except for Landlord's Work, Landlord shall not be required to do any work to prepare the Premises for Tenant's occupancy; it being accepted and agreed that Tenant shall take the Premises in its "as-is, where-is" condition on the Lease Commencement Date.

Section 9.1 **Tenants Work**. Tenant, at its sole cost and expense, shall perform the work described in Exhibit C: Tenant Work Itemized. Tenant is permitted to perform previously approved itemized work to the premises, subject to the following conditions:

A. While preparing the Premises for Tenant's permitted use as set forth in Section 4. Tenant shall be solely responsible for obtaining all required governmental permits, approvals, and certificates of occupancy for Tenant's Work. All such work shall be completed in accordance with the time frames and specifications set forth in Exhibit C: Tenant Work Itemized. Delays caused by events beyond Tenant's reasonable control — including acts of God or delays in the issuance of required governmental approvals — shall extend the applicable completion deadlines for a period equal to such delay.

B. Tenant's Work shall be performed in accordance with detailed architectural and/or engineering plans and specifications **("the "Plans").** Tenant shall submit the Plans to Landlord for review and approval within sixty (60) days following the full execution of this Lease. Landlord shall provide written approval or reasonably detailed reasons for disapproval within fourteen (14) days after receipt. If Landlord requires revisions, Tenant shall, within seven (7) days thereafter, resubmit amended Plans for Landlord's approval. If Landlord requires further changes, Landlord shall notify Tenant within five (5) days, and Tenant shall resubmit revised Plans within five (5) days thereafter. Landlord's approval shall not be unreasonably withheld, conditioned, or delayed.

C. In recognition of Landlord's need to maintain control over the property's development and appearance, Tenant shall not seek or apply for any approvals, variances, permits, or other governmental authorizations affecting the Premises or the Building (including applications to any municipal board or council) without Landlord's prior written consent, which shall not be unreasonably withheld, conditioned, or delayed, provided such actions by Tenant do not interfere with Landlord's operations or other development activities.

D. As part of the negotiation of this Lease, Landlord agrees to contribute a Tenant Improvement Allowance of $48,460 toward Tenant fit-out and Tenant Exclusive Systems (hereinafter defined) (the "Tenant Improvement Allowance"). The Tenant Improvement Allowance shall be paid in three (3) equal tranches at three (3), six (6), and nine (9) months after the Lease Commencement Date, provided Landlord receives lien waivers and invoices evidencing Tenant's actually incurred, out-of-pocket costs for Tenant's Work and related build-out items (collectively, "Eligible Costs") and Tenant is open for business. Any unused portion of any earlier tranche amount shall carry forward and be available to be funded with later tranche payments, subject always to the maximum aggregate Tenant Improvement Allowance amount of $48,460. In the event that the Tenant's build-out items are not completed and fully invoiced to Tenant prior to the nine (9) month trance payment date, any balance of the Tenant Improvement Allowance not previously shall be paid within thirty (30) days of the submission of the final invoice(s) to the Landlord along with lien waivers applicable to such invoices. If Tenant does not occupy and open for business within twelve (12) months of the Lease Commencement Date (as extended by Force Majeure, delays in Landlord's Work, or Landlord Delay), Tenant waives reimbursement rights for any unpaid portion of the Tenant Improvement Allowance; provided, however, any amounts already paid by Landlord shall not be refundable to Landlord unless this Lease is terminated due to Tenant's uncured Event of Default beyond applicable notice and cure periods.

Section 10. Maintenance and Repairs. Maintenance and repairs to the property and Premises will be subject to the following conditions and procedures:

A. **Repairs by Landlord**. Throughout the Term, Landlord, at sole cost and expense, shall repair and maintain the structural portions of the Premises, including foundation, exterior walls and structural supports. Roof repair/maintenance/replacement will be organized by Landlord and allocation of costs previously addressed in Section 5.2. Landlord will organize the maintenance and repair of all common essential building systems serving the Premises up to the point of entry, including all plumbing, electrical, sprinkler, heating, boiler, and cooling systems, and excluding all areas within the Premises, signs, windows, plate glass, and doors. Reasonable non-structural repairs and maintenance (to the extent included in Operating Costs) will be organized by Landlord and billed via the Operating Costs reconciliation and allocated based on Pro Rata Shares of Property, Floor or Premises where applicable. Landlord shall perform such repairs within a commercially reasonable time after receipt of written notice from Tenant, or, in the case of emergency conditions, promptly upon notice. Notwithstanding anything to the contrary in this Lease, Landlord shall, at its sole cost and expense, be responsible for (i) correcting any defects in the Tenant HVAC existing as of the Lease Commencement Date, and (ii) repairing or replacing any such systems that are not in good working order or in compliance with applicable laws during the three (3) month period following the Lease Commencement Date, except to the extent caused by Tenant's modifications, misuse or negligence. The cost of such repairs shall not be recoverable from Tenant as Additional Rent or Operating Costs. Following such three (3) month period, Landlord shall remain responsible for organizing all repairs, maintenance, capital repairs and replacements to the common essential building systems, subject to Tenant's obligation to reimburse its applicable share of Operating Costs to the extent expressly permitted under Section 5.2. Landlord shall not be responsible for maintenance or repair caused by Tenant's modification, misuse, neglect, or willful misconduct, in which event Tenant shall be responsible. If Tenant or its agents damage the roof or structural portions, Tenant shall pay the repair costs. If Landlord fails to perform any of its repair obligations within a reasonable time after notice, Tenant shall have the right, upon an additional thirty (30) days' written notice to Landlord, to perform such repairs; provided that, except in the case of a bona fide emergency, Tenant shall first obtain Landlord's prior written approval of the scope of work, contractor, and cost, which approval shall not be unreasonably withheld, conditioned, or delayed. Tenant shall use licensed and insured contractors, obtain at least two (2) commercially reasonable estimates where practicable, and may offset only the reasonable, documented, out-of-pocket costs actually incurred against Rent. Landlord shall use commercially reasonable efforts to minimize interference with Tenant's business in performing any repairs, alterations, or improvements. Tenant waives any right to make repairs at Landlord's expense, except as otherwise expressly provided in this Lease.

B. **Repairs by Tenant**. Tenant shall, at sole cost and expense, maintain in good order and repair and replace the interior, non-structural portions of the Premises, including interior finishes and components, and the portions of the electrical, plumbing, HVAC, and sprinkler systems and any other system located within the Premises and exclusively serving the Premises, together with all improvements and equipment installed by Tenant, and all signs, glass (including plate and show windows), and doors. Notwithstanding the foregoing, Tenant shall not be responsible for (i) any defects in such systems existing as of the Lease Commencement Date, (ii) any failures with the systems occurring within the three (3) month period following the Lease Commencement Date (except to the extent caused by Tenant's misuse or negligence (iii) any structural components of the Building or common essential building systems or components outside the Premises that are not Tenant Exclusive Systems. Following expiration of such three (3) month period, Tenant shall be responsible for routine maintenance, repair and replacement of any such systems that solely serve Tenants premises and are not shared by other Tenants in the building. Tenant shall secure and maintain, at its expense, a commercially reasonable HVAC maintenance service contract for the portions of the HVAC system and components that exclusively serve the Premises (and specifically excluding the boiler). Tenant shall insure all plate glass at full insurable value with a company reasonably acceptable to Landlord. Tenant shall not make alterations, additions, or improvements without Landlord's prior written consent, which shall not be unreasonably withheld, conditioned, or delayed; provided, however, that Tenant may perform non-structural alterations not affecting building systems upon prior notice to Landlord. All work shall be performed by licensed and insured contractors, in accordance with approved plans (if required), and applicable permits. All work shall comply with applicable building codes at Tenant's expense; provided that Tenant shall not be responsible for bringing the Premises or Building into compliance with applicable laws except to the extent triggered by Tenant's specific alterations or specific Use.

C. **Tenant's Failure to Maintain**. If Tenant fails to maintain the Premises in good order and repair, Landlord shall give Tenant notice. If Tenant fails to promptly commence and diligently complete such work, Landlord may perform such work at Tenant's expense, but only to the extent such work is Tenant's responsibility under this Lease. Tenant shall pay any amount so expended by Landlord promptly after demand, with reasonable supporting documentation. Landlord shall have no liability for any damage, inconvenience, or interference with Tenant's use arising from performing such work. If Tenant causes any damage to the Premises, Tenant shall repair, replace, or restore at Tenant's sole cost and expense, except to the extent caused by the negligence or willful misconduct of Landlord or any Landlord Parties (hereinafter defined).

D. **Glass, etc. Damage, Repairs**. In case of the destruction of or any damage to the glass in the Premises, or the destruction of or damage of any kind whatsoever to the Premises, caused by the carelessness, negligence or improper conduct on the part of the Tenant or the Tenant's agents, employees, guests, licensees, invitees, subtenants, assignees or successors, the Tenant will promptly repair the said damage or replace or restore any destroyed parts of the Premises, at the Tenant's own cost and expense. Plate glass, if any, shall be insured by the Tenant at their full insurable value in a company satisfactory to the Landlord. Said policy shall be of the full premium type.

E. **Condition Upon Expiration of Term**. Upon expiration or earlier termination of this Lease, Tenant shall surrender the Premises in good condition, broom clean, ordinary wear and tear, and damage by casualty excepted. All alterations and improvements installed in the Premises (excluding Tenant's trade fixtures and personal property) shall become Landlord's property and shall remain with the Premises upon expiration or earlier termination of the Lease, except as expressly provided below. Landlord may, at the time of reviewing and approving the Tenant's initial build-out Plans, designate in writing any specific alterations or improvements that must be removed upon the expiration or earlier termination of this Lease. Landlord's approval of Tenant's Plans shall be deemed approval of the alterations as permanent improvements not required to be removed, except as expressly stated in such approval. Only those items so designated at the time of approval shall be required to be removed, and Tenant shall not be required to remove any other alterations or improvements. Tenant shall remove all of its trade fixtures, equipment, furniture, and personal property prior to surrender, and shall repair any damage caused by such removal. Tenant shall not be required to remove any utility, plumbing, electrical, or other infrastructure improvements installed as part of the approved build-out Plan. If Tenant fails to timely remove and restore as required, Landlord may perform such work and Tenant shall reimburse Landlord for reasonable costs actually incurred within thirty (30) days after receipt of reasonable supporting documentation. All furniture, personal property, equipment, fixtures, goods, or other property of Tenant may be removed by Tenant prior to expiration or earlier termination of this Lease. Any of Tenant's personal property remaining in the Premises after surrender shall not be deemed abandoned until at least ten (10) days after surrender, during which period Tenant may retrieve such property. Thereafter, Landlord may retain, remove, sell, or otherwise dispose of such property, and Tenant shall reimburse Landlord for the reasonable costs of such removal and storage; provided, however, that Landlord shall use commercially reasonable efforts to mitigate such costs. Tenant shall not be required to remove any alterations or improvements unless expressly required by Landlord in accordance with this section, and Tenant shall not be responsible for restoring the Premises to a condition superior to that existing as of the Lease Commencement Date.

Section 11. **Signs**. Tenant shall be allowed to place signs for the premises given the following conditions:

A. Tenant may install signage at Tenant's sole cost, which shall include construction, installation, permits, fees, and repairs, and shall maintain such signage in accordance with the "Maintenance and Repairs" section of this Lease.

B. Tenant shall be solely responsible for obtaining all required governmental approvals for signage. Landlord makes no warranty that such approval will be granted but shall reasonably cooperate with Tenant in order to get necessary approvals. Failure to obtain approval shall not excuse Tenant from any obligations under this Lease.

C. If shared signage is required or suggested, Tenant shall cooperate with other tenants or Landlord to create and obtain approvals for such shared signage.

D. Within fifteen (15) days after expiration or termination, Tenant shall remove all signage, panels, and electrical hook-ups and restore the area to its prior condition. If Tenant fails to remove such signage, Landlord may remove and restore at Tenant's expense, payable within ten (10) days of invoice with supporting documentation evidencing commercially reasonable costs actually incurred by Landlord in connection with such removal.

E. Tenant shall not install permanent exterior signage without Landlord's prior written approval as to type, size, color, location, and content, which approval shall not be unreasonably withheld, conditioned, or delayed. Landlord's failure to respond within ten (10) business days after Tenant's request for approval shall be deemed Landlord's consent to, and approval of, Tenant's signage. Temporary signs (31 calendar days or less) are allowed without consent, provided such signs do not become a nuisance.

F. Landlord may, with a prior notice to Tenant, at Landlord's expense, and with Tenant's consent, relocate Tenant's exterior signage to a comparable location if necessary for renovations, construction, site reconfiguration, or to accommodate other tenants, provided such relocation does not materially impair visibility.

Section 12. Sprinkler System. If the Premises contains a sprinkler system, Tenant will be subject to the following conditions:

A. Tenant shall be responsible for its pro rata Share of the costs of all maintenance, annual registration, and/or utility service fees in connection with the sprinkler system .

B. If a sprinkler system or specific sprinkler components are required for tenant's use within demised Premises, tenant is responsible to install and maintain such system.

C. Tenant shall, at Tenant's sole cost and expense, be responsible for making any modifications, alterations, additions, upgrades, or relocations to the sprinkler system that are required as a result of Tenant's specific use, occupancy, layout, improvements, equipment, or alterations within the Premises. Tenant shall ensure that the sprinkler system serving the Premises, as modified or otherwise affected by Tenant's use or work, complies with all applicable laws, codes, ordinances, fire safety requirements, insurance requirements, and requirements of any governmental authority having jurisdiction. Any such work shall be performed by properly licensed contractors, subject to Landlord's prior approval, and shall be completed in a good and workmanlike manner.

Section 13. Cessation of Operations/Failure to Open ("Go-Dark Event"). Tenant shall use commercially reasonable efforts to open for business to the public in the Premises no later than twelve (12) months after the Lease Commencement Date set forth in this Lease, subject to force majeure, delays in Landlord's Work and Landlord's delivery of the Premises, permitting, utility availability, or other matters beyond Tenant's reasonable control. Tenant's failure to open for business and continuously operate from the Premises on or before that date shall not automatically constitute a default unless such failure continues for more than thirty (30) days after written notice from Landlord ("Go-Dark Event"), and shall trigger all obligations and remedies set forth in this Section. Tenant may temporary cease operations for reasonable periods in the ordinary course of business (including, without limitation, for renovations, repairs, inventory changes, seasonal adjustments, or other business reasons, provided however that any cessation of operations for more than thirty (30) consecutive days after initially opening shall also constitute a ("Go-Dark Event"). If Tenant goes dark, whether by failing to open or by ceasing operations after opening, the following provisions apply:

A. Tenant Obligations During Go-Dark. During any period in which the Premises are not open to the public, Tenant shall maintain the Premises in a clean, safe, and secure condition consistent with comparable properties in the area, including maintaining exterior appearance in a commercially reasonable manner and will continue to operate all existing exterior lighting. Tenant shall not be required to operate interior lighting, staffing, or systems beyond what is reasonably necessary for safety, security, and code compliance, nor shall Tenant be required to display or refrain from displaying any specific signage, provided Tenant does not create a nuisance or violate applicable law.

B Tenant shall continue to pay Base Rent and Additional Rent in accordance with this Lease. No additional surcharge or penalty shall apply solely as a result of a Go-Dark Event.

C. Landlord's Recapture Right. If Tenant fails to open within the required time, or remains dark for more than one hundred eighty (180) consecutive days or two hundred-seventy (270) days in any rolling 12-month period, Landlord shall have right, as its sole and exclusive remedy (other than recovery of accrued but unpaid Rent), to terminate this Lease upon thirty (30) days' written notice. Upon such termination, neither party shall have any further liability to the other except for obligations that expressly survive termination, and Tenant shall be liable for any unamortized concessions, future rent, or damages based on re-letting of the Premises.

Section 14. Broker's Commission. Landlord and Tenant represent and warrant to each other that Patrick Dintrone of Newmark and Jason Forster of Proventus Properties are the only ones in connection with the transaction contemplated by this Agreement and such company shall be paid a commission pursuant to the terms of a separate commission agreement between Landlord and them. Other than such brokerage commission, Landlord and Tenant represent and warrant to each other that they have dealt with no broker in connection with the transaction contemplated by this Agreement. Each party agrees to defend, indemnify, and hold the other harmless from and against any and all expense, cost, damage, or liability resulting from the claims of any brokers or those claiming to have performed services in the nature of brokerage services for either one of the parties.

Section 15. Guaranty of Lease. The performance of the Tenant of this Lease shall be Guaranteed based on the terms outlined in the attached Exhibit, by the individual(s) or company executing a separate document signed contemporaneously herewith entitled "Guaranty of Lease". This guaranty shall apply with respect to the Tenant's full and faithful performance and observance of all the covenants, terms, and conditions of the Lease, including Tenant's obligations during any holdover period, and shall not extend to any amendment, modification, expansion, extension, renewal unless the Guarantor expressly agrees to such extension or modification in writing. Notwithstanding the foregoing, provided Tenant vacates the Premises, delivers possession in the condition required under the Lease, and is not in monetary default beyond applicable notice and cure periods, the Guaranty shall automatically terminate as of the date Tenant surrenders the Premises. In the event of Tenant's default, Landlord shall use commercially reasonable efforts to mitigate damages, and Guarantor shall receive credit for any amounts actually recovered by Landlord from reletting or otherwise. In no event shall Landlord be entitled to a double recovery.

Section 16. Compliance with Laws, Etc. Tenant shall at its sole cost and expense promptly comply with all laws, statutes, ordinances, rules, regulations, requirements, and directives of all federal, state, and municipal governments and public authorities, and all their departments, bureaus, and subdivisions, now in force or hereafter enacted, applicable to the Premises, their use and occupancy, including the correction, prevention, and abatement of nuisances, violations, or other grievances in, upon, or connected with the Premises. Tenant shall likewise comply with all orders, regulations, and requirements of the Board of Fire Underwriters or similar authority and of any insurance companies which have issued or are about to issue policies covering the Premises and its contents, for the prevention of fire or other casualty, damage, or injury. Tenant shall be solely responsible for obtaining all licenses and permits required by local, state, and federal governments prior to opening for business and shall maintain all such licenses and permits in good standing throughout the Term.

Section 17. Zoning, Governmental Permits and Licenses. The Landlord makes no representations regarding zoning, and it is the Tenant's responsibility to ascertain any and all zoning matters pertaining to the property and the use and occupancy of the Tenant. The Tenant hereby agrees to secure, at its own cost and expense, any and all governmental approvals, permits and licenses which may be required for the use and occupancy of the premises as stipulated in this Lease, and for the alteration(s), if any, which the Tenant may cause to be made therein. Tenant shall be responsible for the costs and expense of any alterations made. It is understood that any alterations require written consent of Landlord, which shall not be unreasonably withheld, conditioned or delayed, as set forth elsewhere in this Lease.

Section 17.1. Landlord shall reasonably cooperate to allow Tenant to have outdoor seating in front of Tenant's Premises as permitted by the municipality. Such right shall be exclusive to Tenant within such frontage and shall be included within Tenant's Permitted Use. Tenant shall not interfere with the use and quiet enjoyment of the Building and its common areas by other tenants and their patrons. Incidental or customary impacts, including reasonable noise, foot traffic, and customer activity typical of a bakery café, shall not constitute interference.

Section 18. Assignment and Sublease. Tenant shall not assign this Lease or sublet the Premises without Landlord's prior written consent, which consent shall not be unreasonably withheld, conditioned, or delayed. Any transfer of more than 50% of Tenant's equity to parties who are non-owners as of the date of this Lease shall constitute an assignment. Landlord may withhold consent if: (i) the proposed transferee's financial condition is insufficient; (ii) the proposed use differs from Tenant's use and is inappropriate for the Building or would cause excessive traffic or demands on Building services. Any request for assignment or sublease shall include the proposed transferee's address, a duplicate original of the assignment or sublease instrument, and any other information Landlord requests. Failure to respond within fifteen (15) days shall be deemed a denial. No assignment shall relieve Tenant from liability unless Landlord expressly agrees in writing. Landlord may require reimbursement of Landlord's reasonable, actually incurred, and documented third-party costs and reasonable attorneys' fees for review of the proposed assignment or sublease (not to exceed $2,000), payable only if the assignment or sublease is consummated. In any approved sublease is approved, Tenant shall split equally with Landlord all rent received in excess of Base Monthly Rent from the subtenant.

Section 19. Fire and Other Casualty. If the Premises are damaged by fire or other casualty, Landlord shall repair and rent shall abate proportionately during repair based on the extent to which the damage interferes with Tenant's business. If the Premises are so extensively damaged as to render them untenantable, rent shall cease until the Premises are made tenantable, provided such repairs can be completed within one hundred eighty (180) days. If such repairs will exceed 180 days, or if the Premises are totally destroyed or so extensively damaged as to require substantial rebuilding, rent shall be paid to the date of destruction and this Lease shall terminate at Landlord's option; provided, however, that if Landlord does not substantially complete restoration of the Premises within three hundred sixty-five (365) days after the casualty, Tenant may terminate this Lease upon written notice to Landlord given at any time thereafter prior to substantial completion, and rent shall be paid to the date of casualty. Landlord or Tenant may also terminate if damage occurs during the final twenty-four (24) months of the Term or any extension thereof. If the damage is caused by the carelessness, negligence, or improper conduct of Tenant or its agents, employees, guests, invitees, subtenants, or assignees, there shall be no abatement of rent and Tenant shall remain liable for all rent and obligations under this Lease and for all damage and loss suffered by Landlord. Any insurance proceeds payable to Tenant covering such damage shall be paid to Landlord to the extent of Landlord's repair costs, and such insurance carriers shall have no recourse against Landlord for reimbursement. Landlord's determination of the time required for repair and the extent of damage shall be final and binding.

Section 20. Alterations and/or Improvements. Tenant shall not make any alterations, improvements, or additions to the Premises without Landlord's prior written consent. Prior to commencing any work, Tenant shall complete Landlord's work approval forms and submit detailed plans and specifications for review. Landlord may require Tenant to deposit escrow sufficient to cover permit costs, with any unused balance returned upon completion and close out of permits. All alterations, additions, and improvements made by Tenant, except removable trade fixtures, shall upon installation become Landlord's property. Tenant shall notify Landlord in writing of the expected commencement date before starting any work. Landlord may post and maintain notices on the Premises to protect against mechanics' liens or other liens. Should any lien arise from work performed for Tenant, Tenant shall immediately cause it to be satisfied and discharged of record upon Landlord's demand. All work shall be performed by licensed contractors with proper permits, approved plans, and Workers' Compensation coverage, at Tenant's sole cost and in compliance with applicable building codes. Upon termination of this Lease (voluntarily or involuntarily) or within fifteen (15) days thereafter, Tenant shall be required to remove only those specific alterations or improvements that Landlord designated in writing at the time Landlord approved Tenant's initial build-out Plans (or later by mutual written agreement). Tenant shall promptly perform such removal and repair any resulting damage at Tenant's sole expense.

Section 21. Inspection and Repair. The Tenant agrees that the Landlord and the Landlord's agents, employees or other representatives, will have the right to enter into and upon the Premises or any part thereof, at all reasonable hours, for the purpose of examining the same or making such repairs or alterations therein as may be necessary for the safety and preservation thereof. The preceding sentence will not be deemed to be a covenant by the Landlord nor be construed to create an obligation on the part of the Landlord to make such inspection or repairs. Any entry by Landlord or its agents, contractors or employees shall be done at such times as shall minimize interference with Tenant's use and occupancy of the Premises, Tenant's business operations and access to the Premises by Tenant and Tenant's invitees and employees.

Section 22. Right to Exhibit. The Tenant agrees to permit the Landlord and the Landlord's agents, employees or other representatives to show the Premises to persons wishing to rent or purchase the same, and Tenant agrees that during the **six (6) months** preceding the expiration of the term hereof, the Landlord or the Landlord's agents, employees or other representatives will have the right to place notices on the front of the Premises or any part thereof, offering the Premises for rent or for sale; and the Tenant hereby agrees to permit the same to remain thereon without hindrance or molestation. The Tenant will also permit the Landlord and the Landlord's agents, employees or other representatives to show the Premises to prospective mortgagees of the Premises or the land and improvements of which the Premises are a part.

Section 23. Non-Liability of Landlord. The Landlord will not be liable for any damage or injury which may be sustained by the Tenant or any other person, as a consequence of the failure, breakage, leakage or obstruction of the water, plumbing, steam, sewer, waste or soil pipes, roof, drains, leaders, gutters, valleys, down-spouts or the like or of the electrical, gas, power, conveyor, refrigeration, sprinkler, air-conditioning or heating systems, elevators or hoisting equipment; or by reason of the elements; or resulting from the carelessness, negligence or improper conduct on the part of any other tenant or the Tenant's agents, employees, guests, licensees, invitees, subtenants, assignees or successors; or attributable to any interference with, interruption of or failure, beyond the control of the Landlord, of any services to be furnished or supplied by the Landlord. Notwithstanding any contrary provision contained in this Lease, neither Landlord nor its officers, directors, members, agents or employees will be responsible or liable to Tenant for any consequential damages, lost profits, loss of business opportunity, or loss of goodwill under any circumstances whatsoever.

Section 24. Mortgage Priority. This lease will not be a lien against the Premises with respect to any mortgages that may hereafter be placed upon the Premises. The recording of such mortgage or mortgages will have preference and precedence and be superior and prior in lien to this lease, irrespective of the date of recording and the Tenant agrees to execute any instruments, without cost, which may be deemed necessary or desirable, to further effect the subordination of this lease to any such mortgage or mortgages; provided, however, that Tenant shall only be required to execute a commercially reasonable subordination, non-disturbance and attornment agreement ("SNDA") in favor of such mortgagee that includes non-disturbance protections in favor of Tenant so long as Tenant is not in default under this lease beyond any applicable notice and cure periods. A refusal by the Tenant to execute such instruments shall not give the Landlord the option of canceling this lease, and the term hereof is hereby expressly limited accordingly.

Section 25. Condemnation/Eminent Domain. If the Premises or any portion thereof are taken by eminent domain, or if Landlord sells the Premises to the condemning authority in lieu of condemnation, Landlord may terminate this Lease by written notice. Tenant shall have no claim to any condemnation award or purchase price; all such amounts are assigned to Landlord; provided, however, that Tenant may seek and receive, to the extent permitted by law and so long as Landlord's award is not reduced thereby, any portion of an award attributable to Tenant's trade fixtures, personal property, and moving/relocation expenses. Tenant shall execute any instruments necessary to expedite condemnation proceedings or transfer of title, at Landlord's expense, and shall surrender possession to Landlord or its designee. Landlord has no obligation to repair or restore if condemnation occurs during the final twenty-four (24) months of the Term.

Section 26. Holdover Tenancy. If Tenant remains in possession of the Premises after the expiration or earlier termination of the Term without Landlord's written consent, such occupancy shall constitute a tenancy at sufferance only. During any such holdover period, Tenant shall pay Rent equal to two hundred (200%) percent of the highest monthly Base Rent and Additional Rent payable during the Term. Acceptance of any holdover payment shall not be deemed consent to such occupancy nor a waiver of Landlord's right to immediate possession

Section 27. Defaults and Remedies

A. **Events of Default.** Each of the following constitutes an "Event of Default": (i) failure to pay rent within five (5) days of written notice; (ii) failure to perform any non-monetary obligation within fifteen (15) days of written notice (or longer if reasonably required and diligently pursued); (iii) abandonment, desertion, or vacancy of the Premises; (iv) Tenant's bankruptcy, insolvency, receivership, or assignment for the benefit of creditors; (v) three (3) or more late rent payments in any twelve-month period; or (vi) levy, execution, attachment, or court order affecting Tenant's interest.

B. **Landlord's Remedies.** Upon any Event of Default, Landlord may, without further notice except as required by law: (i) terminate this Lease by written notice; (ii) re-enter and repossess the Premises without liability; (iii) remove Tenant and occupants and store or dispose of property at Tenant's expense; (iv) relet the Premises on any terms for any period. Re-entry or reletting shall not constitute termination unless Landlord expressly so states in writing.

C. **Application of Rents.** Rents received from reletting shall be applied first to costs of reletting (including brokerage, legal fees, and repairs), then to unpaid rent. Tenant shall pay any monthly deficiency and shall remain liable for the present worth of all rent reserved for the remainder of the Term, less net rents received from reletting.

D. **Cumulative Rights.** All rights and remedies of Landlord under this Lease, at law, or in equity are cumulative and not exclusive. Landlord's failure to enforce strict performance of any condition or covenant, to exercise any option or remedy, or to resort to any recourse in any one or more instances shall not constitute a waiver or relinquishment of such rights for the future, and the same shall remain in full force and effect. Acceptance of rent or any other payment after any default shall not be deemed a waiver of the default or of Landlord's right to pursue any remedy. No waiver shall be effective unless in writing and signed by Landlord. Landlord shall have a duty to mitigate its damages in the event of a default by Tenant.

Section 28. **Attorney's Fees**. In case suit shall be brought for recovery of possession of the leased premises, for the recovery of rent or any other amount due under the provisions of this Lease, or because of the breach of any other covenant herein contained on the part of Tenant to be kept or performed, and a breach shall be established, Tenant shall pay to Landlord all expenses incurred therefore, including reasonable attorneys' fees, and said expenses shall be deemed to be rent and shall be recoverable as additional rent.

Section 29. **Reimbursement of Landlord and Interest**. The Landlord, at Landlord's option, shall have the right to pay any sum or perform any act requiring the expenditure of monies by reason of the failure or neglect of Tenant to perform any of the provisions of this Lease to be performed by the Tenant hereunder. In the event Landlord shall so elect to make such payments or perform such acts requiring the expenditure of monies, Tenant agrees to pay to Landlord, within ten (10) days after demand, all such sums paid or expended, together with interest thereon at the rate of **ten percent (10%) per annum** or the maximum legal rate from the date of expenditures; such sums to be deemed to be and shall become additional rent hereunder, and collectible as such.

Section 30. **Exercise by Landlord of Rights and Remedies**. No reference in this Lease to any specific right or remedy shall preclude Landlord from exercising any other right or from having any other remedy or from maintaining any action to which it may otherwise be entitled either under this Lease or at law or in equity.

Section 31. **Limitation of Landlord Liability**. Tenant's recourse against Landlord shall be limited to Landlord's interest in the Property. No personal liability shall attach to Landlord or its members, partners, officers, directors, agents, or employees, and Tenant shall have no right to obtain a judgment for money damages or levy upon any assets other than Landlord's equity in the Property. The term "Landlord" as used in this Lease means only the owner of the Premises for the time being. In the event of a sale or transfer of the Premises, the named Landlord shall be entirely freed and relieved of all covenants and obligations under this Lease, and the purchaser or transferee shall be deemed, without further agreement, to have assumed and agreed to perform all obligations of the Landlord hereunder.

Section 32. **Subordination; Attornment; Lender Protections**. This Lease shall be subject and subordinate to any mortgage, deed of trust, or other security instrument now or hereafter encumbering the Property, at Landlord's option. Tenant agrees to attorn to any lender or purchaser at foreclosure and to recognize such party as landlord under this Lease. Tenant agrees to execute, within ten (10) days after request, any commercially reasonable subordination, non-disturbance, and attornment agreement (SNDA) required by any lender, provided that any such SNDA includes commercially reasonable non-disturbance protections in favor of Tenant. Failure to do so shall not constitute a material default so long as Tenant is cooperating in good faith to execute a commercially reasonable SNDA that includes such non-disturbance protections.

Section 33. **Force Majeure**. Except for the obligation to pay Rent and other sums of money when due, if either Landlord or Tenant is delayed or prevented from performing any obligation under this Lease (other than the payment of money) by reason of any cause beyond such party's reasonable control (a "Force Majeure Event"), including, without limitation, acts of God, fire or other casualty (subject to Section 19), flood, earthquake, epidemics or public health emergencies, war, terrorism, civil commotion, riots, strikes or other labor disturbances (to the extent not caused by the affected party), shortages of labor or materials, supply chain disruptions, governmental laws, orders, regulations or actions, delays in obtaining permits or approvals, or interruption of utilities not caused by the affected party, then the time for performance of such obligation shall be extended for the period of such delay, provided that the affected party (i) gives the other party, within five (5) business days of its occurrence, written notice of the Force Majeure Event and the affected obligation, and (ii) uses commercially reasonable efforts to mitigate the effects of the Force Majeure Event and resume performance as soon as reasonably practicable. A Force Majeure Event shall not excuse, delay, or suspend Tenant's obligation to pay Rent or other sums of money when due (except to the extent expressly provided in this Lease, including rent abatement rights in the event of casualty under Section 19). Neither party shall be liable to the other for damages solely resulting from a delay caused by a Force Majeure Event; provided that nothing herein shall limit either party's rights and remedies for the other party's willful misconduct or for obligations that are expressly not subject to force majeure under this Lease.

Section 34. **No Constructive Eviction; No Abatement.** Tenant expressly acknowledges and agrees that no interruption, delay, failure, or reduction in the furnishing of any services, utilities, access, repairs, maintenance, or improvements to the Premises or the Building, whether caused by Landlord, governmental authorities, force majeure events, repairs, alterations, casualty, or otherwise, shall constitute an actual or constructive eviction of Tenant, nor shall the same entitle Tenant to any abatement, reduction, offset, or suspension of Rent or any other sums due under this Lease unless expressly provided herein. Tenant waives any right to claim constructive eviction or to withhold or offset Rent based upon any such condition or circumstance, except to the extent expressly set forth in this Lease.

Section 35. **Validity of Lease**. The terms, conditions, covenants and provisions of this least will be deemed to be severable. If any clause or provision herein contained is adjudged to be invalid or unenforceable by a court of competent jurisdiction or by operation of any applicable law, it will not affect the validity of any other clause or provision herein, but such other clauses or provision will remain in full force and effect.

Section 36. **No Recording**. Tenant shall not record this Lease or a memorandum or short form thereof without the written consent of Landlord.

Section 37. **Waiver of Trial by Jury**. To the extent permitted by law, the parties waive trial by jury in any action, proceeding, or counterclaim arising out of or connected with this Lease, the Landlord-Tenant relationship, or Tenant's use or occupancy of the Premises. In any proceeding for non-payment of rent or recovery of possession, Tenant shall not interpose any counterclaim, set-off, cross-complaint, or defense of any nature. Tenant shall not be precluded from bringing a separate, independent action against Landlord on any claim it may have, provided such action does not interfere with Landlord's remedies hereunder, including the collection of rent. Tenant shall continue to pay all Base Rent and Additional Rent when due, without deduction, set-off, or abatement, notwithstanding the existence of any claim or cause of action against Landlord.

Section 38. **Notices**. All notices required under the terms of this lease will be given and will be complete by mailing such notices by certified or registered mail, return receipt requested, to the address of the parties as shown at the head of this Lease, or to such other address as may be designated in writing, which notice of change of address will be given in the same manner.

Section 39. **Title and Quiet Enjoyment**. The Landlord covenants and represents that the Landlord is the owner of the Premises herein leased and has the right and authority to enter into, execute and deliver this lease; and does further covenant that the Tenant on paying the rent and performing the conditions and covenants herein contained, will and may peaceably and quietly have, hold and enjoy the Premises for the term aforementioned.

Section 40. **Liens.** If any construction or other liens are created or filed against the Premises by reason of labor performed or materials furnished for the Tenant in the erection, construction, completion, alteration, repair or addition to any building or improvement, the Tenant will, upon demand, at the Tenant's own cost and expense, cause such lien or liens to be satisfied and discharged of record together with any lien claims that may have been filed. Failure to do so, will entitle the Landlord to resort to such remedies as are provided in this Lease for any default of this Lease, in addition to such as are permitted by law.

Section 41. Liability and Property Insurance. Tenant shall obtain and maintain: (i) general public liability insurance naming Landlord as additional insured on a primary and non-contributory basis and a waiver of subrogation in favor of the Landlord, with minimum limits of $2,000,000 per occurrence and $2,000,000 aggregate for bodily injury, and $1,000,000 for property damage; and (ii) property insurance on all Tenant improvements, fixtures, equipment, and merchandise for full insurable value against fire, theft, windstorm, hail, explosion, riot, vandalism, malicious mischief, aircraft, vehicles, and smoke. Tenant shall deliver Certificates of Insurance five (5) days prior to occupancy and at least fifteen (15) days before each policy expiration. Failure to maintain or timely provide proof of insurance shall be a material default and shall incur a $500/month charge until cured. If Tenant fails to provide insurance, Landlord may procure it at Tenant's expense, with immediate reimbursement plus interest. If Tenant does not furnish proof of coverage or allows any required insurance to lapse, Landlord may pay the premiums on such insurance and Tenant shall immediately reimburse Landlord for all amounts so expended, together with interest at the rate provided in this Lease, collectible as additional rent. If for any reason it becomes impossible to obtain fire and other hazard insurance on the building and improvements in an amount, form, and from insurance companies acceptable to Landlord, Landlord may at any time thereafter terminate this Lease upon fifteen (15) days' written notice to Tenant.

Section 42. Indemnification. Tenant shall indemnify and hold Landlord harmless from all claims, liabilities, damages, costs, and expenses (including attorneys' fees) arising from: (i) Tenant's use of the Premises; (ii) any breach of this Lease; or (iii) any act or negligence of Tenant or its agents, employees, or invitees, except to the extent caused by Landlord's gross negligence or willful misconduct. Tenant assumes all risk of damage to property or injury to persons in or about the Premises from any cause other than Landlord's gross negligence or willful misconduct and waives all claims against Landlord. Notwithstanding anything to the contrary in this Lease, no provision requiring Tenant to indemnify, defend, or hold harmless Landlord shall apply to, or include, any losses, liabilities, claims, damages, penalties, fines, judgments, costs, or expenses (including reasonable attorneys' fees) to the extent arising out of or resulting from the negligence or willful misconduct of Landlord or any of Landlord's members, managers, officers, directors, partners, shareholders, property managers, agents, employees, contractors, consultants, affiliates, successors, assigns, lenders, or any other party claiming by, through, or under Landlord (collectively, "Landlord Parties"). This carve-out shall apply regardless of whether any such matter is caused in part by Tenant, except to the extent attributable to Tenant's negligence or willful misconduct, in which event the parties' respective responsibilities shall be allocated in accordance with applicable law.

Section 43. Environmental and Operational Indemnification. Tenant shall not use, store, or dispose of any hazardous materials in violation of law; provided, however, that Tenant may use and store customary quantities of cleaning and maintenance materials in compliance with applicable laws. Tenant shall indemnify, defend, and hold Landlord harmless from all claims, liabilities, damages, fines, costs, and expenses (including reasonable attorneys' fees and remediation costs) to the extent arising from the release of hazardous materials caused by Tenant during the Term or Tenant's violation of environmental laws. Tenant shall be responsible, at its sole cost and expense, for remediation of any environmental condition to the extent caused by Tenant, in accordance with applicable laws and the requirements of the New Jersey Department of Environmental Protection (NJDEP). Tenant shall not be responsible for any pre-existing environmental conditions or contamination not caused by Tenant, or for any conditions caused by Landlord or other tenants. This Section shall survive the expiration or earlier termination of this Lease.

Section 44. Waiver of Subrogation Rights. Landlord and Tenant each waive, to the extent permitted by applicable law, any and all rights of recovery against the other or their respective agents, employees, or contractors for loss or damage to property to the extent covered by insurance carried or required to be carried under this Lease, except to the extent caused by such other party's willful misconduct. Each party shall use commercially reasonable efforts to obtain waivers of subrogation from its insurance carriers.

Section 45. Bankruptcy. If at any time during the Term: (i) a petition in bankruptcy or insolvency is filed by or against Tenant; (ii) Tenant is adjudicated bankrupt or insolvent; (iii) a receiver, trustee, or liquidator is appointed for Tenant or Tenant's estate; (iv) Tenant makes an assignment for the benefit of creditors; or (v) any judgment, execution, levy, attachment, or similar process is issued against Tenant or Tenant's interest in this Lease, then Landlord may, at its option, terminate this Lease upon five (5) days' written notice. All security deposits shall immediately belong to Landlord and shall be applied toward any and all damages incurred by Landlord, whether accrued prior to or subsequent to such event, for the entire unexpired Term.

Section 46. ISRA Compliance. Tenant shall, at Tenant's own expense, comply with the Industrial Site Recovery Act, N.J.S.A. 13:1k-6 et seq., and the regulations promulgated thereunder ("ISRA") but only to the extent triggered by Tenant's specific operations or changes in ownership as defined under ISRA, and only with respect to environmental conditions caused by Tenant or its agents, employees, or contractors during the Term of the Lease. Tenant shall not be responsible for any pre-existing environmental conditions or contamination not caused by Tenant, nor for any conditions arising from the acts or omissions of Landlord or other tenants. If it is determined that Tenant is required to comply with ISRA, the Tenant shall, at its own expense, comply with ISRA orders and directives, which may include the use of institutional controls or engineering controls, as permitted by NJDEP, and shall not be required to achieve unrestricted use standards unless otherwise required by applicable law. . Should the Tenant fail to comply with NJDEP after written notice and a reasonable opportunity to cure, the Landlord shall have the right to implement and complete all required cleanup procedures, and Tenant shall reimburse Landlord for the reasonable documented out of pocket costs actually incurred, to the extent Tenant is responsible under this section.

Section 46.1. Landlord's Environmental Representation. Landlord represents to the best of Landlord's knowledge and belief, as of the Lease Commencement Date: (i) the Premises are in compliance in all material respects with applicable environmental laws, including, without limitation, the Industrial Site Recovery Act ("ISRA"); (ii) there are no hazardous substances present in, on, or under the Premises in violation of applicable environmental laws; (iii) Landlord has not received any written notice from any governmental authority regarding any violation of environmental laws or any requirement for investigation or remediation affecting the Premises; and (iv) there are no pending or, to Landlord's knowledge, threatened environmental claims, investigations, or proceedings affecting the Premises. Landlord shall be responsible, at its sole cost and expense, for the investigation, remediation, and compliance with applicable environmental laws with respect to any environmental condition existing prior to the Lease Commencement Date or not caused by Tenant, including any ISRA obligations not triggered by Tenant's operations. The obligations of Landlord under this Section shall survive the expiration or earlier termination of this Lease.

Section 47. **Entire Contract**. This Lease, together with all exhibits and attachments hereto, contains the entire contract between the parties, with respect to the Premises and supersedes all prior and contemporaneous negotiations, understandings, and agreements, whether written or oral. No representations, warranties, or agreements have been made by either party except as expressly set forth in this Lease. No additions, changes or modifications, renewals or extensions hereof will be binding unless reduced to writing and signed by the Landlord and the Tenant.

Section 48. **Conformity with Laws and Regulations**. If any provision of this Lease is determined to be invalid or unenforceable under applicable laws or regulations, such provision shall be deemed modified only to the minimum extent necessary to comply with such laws or regulations, and the remainder of this Lease shall remain in full force and effect. Any such modification shall be applied in a manner that most closely reflects the original intent of the parties.

Section 49. **Number and Gender**. In all references herein to any parties, persons, entities or corporations the use of any particular gender or the plural or singular number is intended to include the appropriate gender or number as the text of the within instrument may require. All the terms, covenants and conditions herein contained shall be for and shall inure to the benefit of and shall bind the respective parties hereto, and their heirs, executors, administrators, personal or legal representatives, successors and permitted assigns.

Section 50. **Construction of Lease.** This Lease shall be construed as if it were drafted equally by both Landlord and Tenant, and there shall not be a presumption with regard to interpreting any ambiguities contained herein in favor of or against either party.

Section 51. **Estoppel Certificate**. Tenant shall, upon not less than ten (10) business days prior written notice from Landlord, execute, acknowledge and deliver to Landlord a statement in writing ("Estoppel Certificate") (a) certifying to Tenant's knowledge, that this Lease is unmodified and in full force and effect (or, if modified, stating the nature of such modification and certifying that this Lease as so modified is in full force and effect), and (b) the date to which the rental and other charges are paid in advance, if any, and (c) acknowledging that there are not, to Tenant's knowledge, any uncured defaults on the part of Landlord hereunder, or specifying such defaults, and (d) setting forth the date of commencement of rents and expiration of the term hereof. Any prospective purchaser or encumbrancer of all or any portion of the real property of which the Premises are a part may rely upon any such Estoppel Certificate. If Tenant fails to execute and deliver to Landlord a completed certificate as required under this Section, Landlord shall have the right to prepare an estoppel certificate based on its books and records, provided that such certificate shall be binding upon Tenant.

Section 52. **Corporate Authority.**_ If either party is a corporation, limited liability company, or other entity, each individual executing this Lease on behalf of such entity represents and warrants that he or she is duly authorized to execute and deliver this Lease on behalf of said entity in accordance with the governing documents of said entity, and that this Lease is binding upon said entity in accordance with its terms.

Section 53. **Third Party**. The Tenant acknowledges that some or all of the demised Premises may currently be occupied by third-parties prior to the inception of the Lease and that the Landlord may not be able to deliver possession of the Premises to the

Tenant by the Lease Commencement Date, in which such case Landlord shall not be subject to any liability for failure to give possession on said date and the validity of the lease shall not be impaired under such circumstances, but nothing herein shall be deemed to limit or waive Tenant's right to terminate this Lease if Landlord fails to deliver possession of the Premises to Tenant on or before November 1, 2026 upon ten (10) days' prior written notice to Landlord and return of its Security Deposit. In addition, any delay in delivery of possession shall extend, day-for-day, any deadlines or performance periods under this Lease that are measured from delivery of possession and/or the Lease Commencement Date (including, without limitation, any plan submission periods, opening and timing conditions tied to the Lease Commencement Date, and the timing of the Tenant Improvement Allowance tranches). The rent payable hereunder shall be abated (provided Tenant is not responsible for Landlord's inability to obtain possession or complete any work required) until after Landlord shall have given Tenant written notice that the premises are Substantially Completed.

Section 54. **Financial Reporting**. Tenant shall, within thirty (30) days after Landlord's written request, but not more than once per calendar year (unless an event of default exists beyond applicable notice and cure periods), deliver to Landlord current financial statements, including a balance sheet, profit and loss statement for the most recent fiscal year and year-to-date period, certified by Tenant as true and correct. Any financial information provided by Tenant shall be treated as confidential by Landlord.

Section 55. **Law Governing.** This Lease shall be governed by, construed and enforced in accordance with the laws of the State of New Jersey.

Section 56. **Execution.** This Agreement may be executed in counterparts, each of which shall be deemed an original, but all of which shall constitute one and the same instrument.

SIGNATURES

In Witness Whereof, the parties hereto have hereunto set their hands and seal, or caused these presents to be signed by their proper corporate officers and their proper corporate seal to be hereto affixed, the day and year first above written.

MARION STREET 114 LLC
(LANDLORD)

By:________________________
RICHARD ANGEL
Co-Managing Member 6/16/26

CHEZ ALICE WESTFIELD LLC
(TENANT)

By:________________________
Name: Eli Mordechai, Ph.D.
Title: Managing Member

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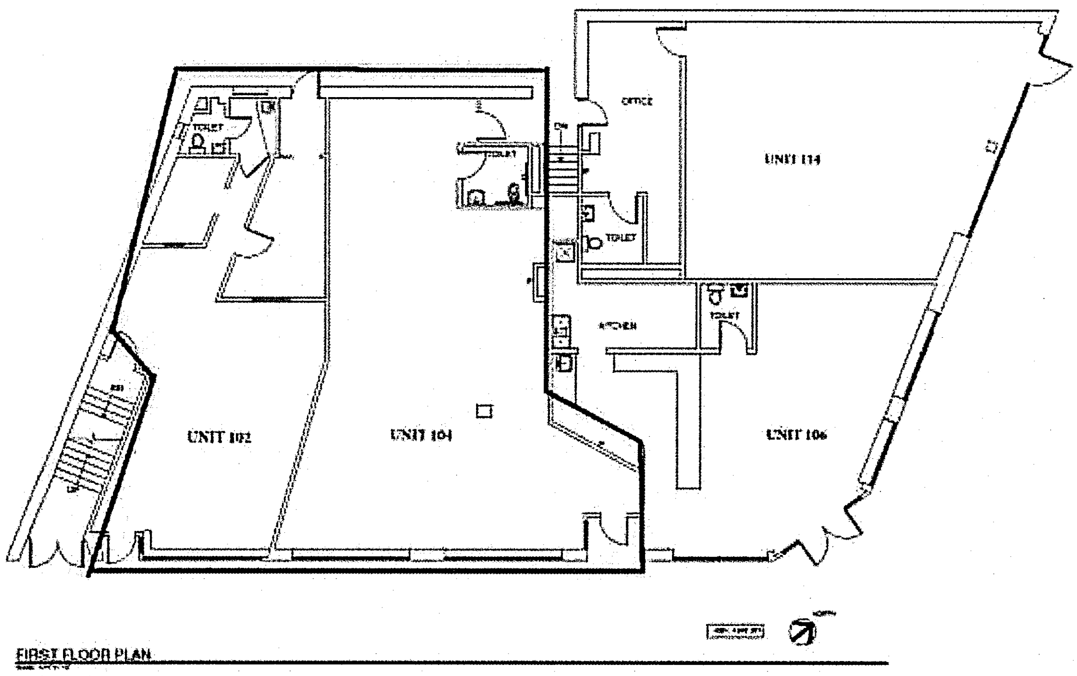
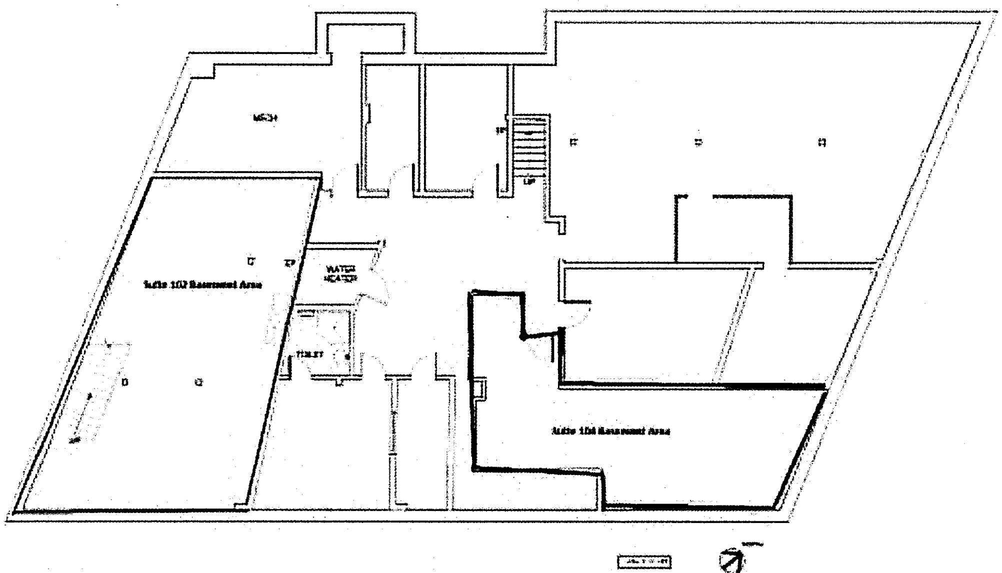
"Exhibit A"
Floor Plan of the Premises





BASEMENT FLOOR PLAN

“Exhibit B”

Landlord’s Work Itemized

Landlord shall i) repair the leaking pressure valve on the boiler that serves the building; and ii) deliver possession of the Premises vacant (and clear of all personal property and trade fixtures of any prior Tenant) with all HVAC systems, plumbing, sprinkler, and electrical systems serving the Premises in good working order, condition, and in compliance with all applicable laws as of the Lease Commencement Date.. Any failure of such systems within ninety (90) days following the Lease Commencement Date shall be presumed to have existed as of the Lease Commencement Date, and Landlord shall promptly repair or replace the same at its sole cost and expense. Except as provided above, the Premises are to be delivered AS-IS, WHERE-IS.

"Exhibit C"

Tenant's Work

TENANT FORMS.

Tenant's work shall be as set forth in plans provided and approved by the Landlord.